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UNITED STATES INTERNATIONAL TRADE COMMISSION

Washington, D.C.

In the Matter of

CERTAIN WEARABLE DEVICES

Investigation No. 337-TA-1478

**ORDER NO. 14: DENYING OURA’S MOTION FOR SUMMARY
DETERMINATION**

(August 27, 2026)

Oura moves for summary determination of non-infringement of the asserted claims of U.S. Patent No. 10,978,789 by its Ring 5 (also called [REDACTED]) and [REDACTED] products. Motion Docket No. 1478-07 (EDIS Doc. ID 888636). The Motion includes a Statement of Material Facts. Mot., Attachment ID 2579896. Samsung opposes (EDIS Doc. ID 890735). Samsung’s Opposition includes Samsung’s Response to Oura’s SMF. Opp, Attachment ID 2592211 (“SMF Resp.”). Oura filed a reply (EDIS Doc. ID 890643). For the reasons detailed below, the motion is DENIED.

Summary determination “shall be rendered if pleadings and any depositions, answers to interrogatories, and admissions on file, together with the affidavits, if any, show that there is no genuine issue as to any material fact and that the moving party is entitled to a summary determination as a matter of law.” 19 C.F.R. § 210.18(b). At the summary determination stage, “evidence is to be viewed in a light most favorable to the non-movant, and all reasonable inferences must be drawn in favor of the non-movant.” *Certain Computing Devices Utilizing Indexed Search Systems and Components Thereof*, Inv. No. 337-TA-1389, Comm’n Op. at 10–11 (Nov. 6, 2024) (EDIS Doc. ID 836574), citing *Anderson v. Liberty Lobby, Inc.*, 422 U.S. 242, 255 (1986).

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On this summary determination record, there are disputed questions of fact regarding at least what information Oura provided in discovery to Samsung from which Samsung could make an infringement assessment as to Ring 5 and [REDACTED] and the '789 patent, separate from its infringement allegations as to the Oura Ring 4. Oura contends that it identified Ring 5 and [REDACTED] “in April as products for which it would seek adjudication, and no discovery was denied to Samsung.” Reply at 6. The question, however, is what discovery was provided. *Certain Human Milk Oligosaccharides & Methods of Producing Same*, Inv. No. 337-TA-1120, Comm’n Op. at 20–21 (EDIS Doc. ID 712205). The claims of the '789 patent recite specific structures of the PCB, including its portions and layers. *See* '789 patent at claim 7. As explained by the Commission in *Oligosaccharides*, “the test [for adjudication] requires discovery that is sufficient for the complainant to assess the features relevant to the asserted patent claims.” *Id.* at 20, n.22.

Oura contends that extensive discovery regarding Ring 5 and [REDACTED] was provided, pointing to Exhibits 43, 57, and 100 and its discovery responses, Exhibits 15 and 19. Reply at 6. From those materials, it appears that Oura produced documents that may show the PCB structure of Ring 5 and [REDACTED] and may have pointed to those documents (among others) in its interrogatory responses. Ex. 15 at 13, identifying page range including Ex. 100, and 17, identifying page range including Ex. 43, and Ex. 19 at 18, identifying page range including Ex. 57. At the same time, Oura also stated that Ring 5 and [REDACTED] do not infringe the '789 patent for the same reasons the Oura Ring 4 does not infringe. Ex. 15 at 79 (“Oura further states that the ‘[REDACTED]’ ring, which is currently under testing and development release phase, and will be released as Oura Ring Gen. 5, and the [REDACTED], do not directly infringe, induce infringement of, or contribute to the infringement of the '359 Patent, the '677 Patent, the '675 Patent, and the '789 Patent for at least the same reasons as set forth in Oura’s First

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Supplemental Response to Interrogatory No. 7.”). That statement by Oura supported that Ring 5 and [REDACTED] have the same PCB structure as the Oura 4 Ring for purposes of assessing infringement of the ’789 patent.

Oura also points to photographs of Ring 5 and [REDACTED] which were produced on May 29, the last day of fact discovery. Motion at 22 and Order No. 8. Samsung points to that last-day production of images and argues that they were “inadequate to assess infringement” and “failed to give Samsung any opportunity to analyze and test those images before the end of fact discovery, let alone incorporate them in its final infringement contentions.” Opp. at 17 and n.7. As to Oura’s production more generally, Samsung contends that none of the materials identified by Oura “provide[s] the types of detailed images or information needed to evaluate the relevant internal structures” of Ring 5 and [REDACTED] Opp. at 18.

Recognizing that Commission policy is “in favor of adjudicating redesigns to prevent subsequent and potentially burdensome proceedings that could have been resolved in the first instance in the original Commission investigation,” *Oligosaccharides*, Comm’n Op. at 18, there is a disputed question of fact here on whether Oura provided “discovery that [wa]s sufficient for [Samsung] to assess the features relevant to the asserted patent claims” of the ’789 patent. *Id.* at 20, n.22; SMF Resp. Item #’s 6, 8–12, 14–18, 20–26, 31–37, 43–54, 58–59, 68–70, 83–85, 89–90, 92–98, 103, 105, and 107–108.¹

Motion No. 1478-07 is DENIED.

¹ Samsung contends that because Oura did not identify [REDACTED] or [REDACTED] as redesigns or alternative products, they should not be adjudicated. Opp. at 10–11. It was not necessary for Oura to call those products redesigns or alternative products for them to be adjudicated. The question (about which there is a dispute) is whether Oura provided sufficient discovery for them to be adjudicated.

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SO ORDERED.



Doris Johnson Hines
Administrative Law Judge